Valley Central School District Policy 8636: Data and Student Privacy Passages

Excerpted verbatim from *Policy 8636, Artificial Intelligence (Valley Central School District, New York; adopted July 1, 2024)*. The source has no page numbers; locations are given by section. Web page text; ellipses (…) mark omitted text.

Requirements: Education Law 2-d Compliance (excerpt)

Source: web page

Any student use of GenAI in schools, on school networks/computers, or for school purposes must be compliant with Education Law 2-d and its regulations, particularly whenever student Personally Identifiable Information is disclosed, including third-party agreements where applicable. Staff must consult with the district's Data Protection Officer to determine compliance with Education Law 2-d. Further, staff must receive permission from an administrator before using any GenAI program that requires the acceptance of terms and conditions.

Sensitive or Other Confidential Information

Source: web page

Because any information used as input in a GenAI may be used by that system and potentially made available to other users of the system, district users must not input any sensitive, copyrighted, proprietary, or confidential district information, consistent with applicable state and federal laws and district policies, including but not limited to the following:

- Student information: anything that would be protected by FERPA (see policy 5500) or Education Law 2-d (see policy 8635).
- Staff information: anything that would be protected by Education Law 2-d (see policy 8635), or other confidential personnel information.
- School district information: anything that would be withheld from a Freedom of Information Law (FOIL) request (see policy 1120).

Additionally, users of GenAI must exercise caution before inputting any work created by district students or employees.

Cross-References and References (excerpt)

Source: web page

- 8635, Information and Data Privacy, Security, Breach and Notification
- Family Educational Rights and Privacy Act, as amended, 20 USC 1232g; 34 CFR Part 99
- Education Law §2-d
- 8 NYCRR Part 121